AI Contestability and Redress Control
The Council · AI Governance Playbook (Level 5 document)

This proposed control describes how a person affected by a decision that AI has made or materially influenced may receive information, request human review through an applicable route, and seek redress where available; and how The Council could handle, record and learn from such challenges. It does not create a statutory right or establish that a route is currently operational.

It is proposed for AI systems that make or materially influence decisions about individuals (section 3). It gives effect to the contestability and redress expectations in the AI Playbook for the UK Government and the accountability principle of the Data and AI Ethics Framework, and is intended to support consideration of legal safeguards where applicable; it does not itself establish that a particular legal duty applies. The legal anchors in section 2, operational scope and ownership must be confirmed by Legal Services and relevant service owners before reliance or adoption.

1. Why this control exists

The proposed framework aims to make applicable review and complaint routes clear to people affected by AI-influenced decisions. Where a route is not yet confirmed or operational, this draft must not imply otherwise. The Local Government and Social Care Ombudsman (LGSCO) may be an external route for eligible complaints within its remit; it is not the route for every AI-related challenge.

2. Legal and policy anchors

Anchor	What it requires
Data (Use and Access) Act 2025 / UK GDPR (Arts 22A–22D)	For significant decisions taken solely by automated processing, where there is no meaningful human involvement: inform the person, give meaningful information about the decision, allow representations, provide human intervention, and let the decision be contested. Tighter limits apply where special-category data is involved. Articles 22A–22D were inserted by DUAA 2025 s.80 and have been in force since 5 February 2026 (SI 2026/82).
Equality Act 2010, section 149 (Public Sector Equality Duty)	When exercising its functions, a public authority must have due regard to the statutory needs in section 149(1). Section 149 does not itself create a general, standalone AI challenge route. Available challenge routes depend on the facts and applicable complaint, appeal or legal process.
Human Rights Act 1998, section 6; Convention Articles 6 and 8	Section 6 makes it unlawful for a public authority to act incompatibly with a Convention right, subject to the statutory framework. Article 6 applies where civil rights and obligations (or a criminal charge) are determined and concerns a fair hearing before an independent and impartial tribunal; it is not a general challenge route for every administrative decision. Article 8 protects respect for private and family life and is a qualified right. Assess applicability and any limits on the facts.
Public law	No universal duty to give reasons applies to every decision; a duty may arise from statute, common law, fairness or the circumstances. Decision-makers must exercise their own lawful judgment and not unlawfully fetter discretion. Judicial review is a possible route where its legal requirements are met; this is not advice on any individual case.

Anchor	What it requires
Local Government and Social Care Ombudsman (LGSCO)	May consider eligible complaints about local-authority services within its remit and process; not every AI-related complaint falls within its jurisdiction.
Data Protection Act 2018, section 164A (inserted by DUAA 2025 s.103; in force from 19 June 2026)	The Council must make it easy to complain about its handling of personal data (for example by providing an electronic complaint form), acknowledge a complaint within 30 days of receipt, take appropriate steps to respond without undue delay (including making enquiries and keeping the complainant informed) and tell the complainant the outcome without undue delay. The ICO route normally follows the Council's own complaints procedure. Legal Services and the DPO to confirm the Council's procedure.
Information Commissioner's Office (ICO)	May consider data-protection complaints within its remit and applicable process; this is not a general appeal route for every decision.

Legal Services must confirm these anchors and their current article-level detail before the control is relied on; this is consistent with the specialist validation flagged for AIG-AIMS-05.

3. Scope — when the right to contest applies

Tier	What it covers	Contest route
A	A significant decision about a person, taken solely by automated processing with no meaningful human involvement (e.g. eligibility, prioritisation, a service or benefit outcome)	Apply statutory safeguards where the legal trigger and conditions are met; confirm the case-specific position. Proposed review controls do not expand statutory scope.
B	AI materially influences a decision a person still takes	Use the proposed Council review route if adopted and applicable; no blanket statutory contest right is asserted solely because AI materially influences a human decision. Tier B applies only where the human involvement is meaningful: a competent reviewer with the authority and information to change the outcome, not routine acceptance of the AI output. If it is not meaningful, treat the decision as Tier A. The human decision-maker remains accountable, and reasons are provided where required.
C	AI used with no bearing on decisions about individuals (e.g. back-office drafting)	No individual AI-decision review route is implied solely by this use; assess any other applicable rights, complaints routes and transparency requirements.

The A/B/C tiers in this control are contestability-scope categories based on how the decision is made and its effect on an individual; they are not the AGPI governance-priority score or risk tier. Use the facts of the decision process, including the Intake answer on significant decisions taken without meaningful human involvement (AIG-INV-03 Section 4) and any Register (AIG-INV-04) flags, as evidence, and have the responsible owner assess and record the applicable category; do not infer it automatically from AGPI.

4. Proactive transparency (contestability depends on it)

Proposed practice, subject to Council approval, applicable law, and confirmation of operational routes: people need understandable information to use an available review route. For Tier A or B, consider proportionate notice and review arrangements; this control does not assert a blanket statutory entitlement for every case.

- Where required by applicable law or adopted Council policy, and otherwise as an approved transparency practice, explain in plain language whether and how AI contributed to the outcome.
- Provide reasons where required by the applicable decision framework; as a proposed practice, explain the decision and the AI's role in a way appropriate to the case.
- Signpost the confirmed applicable review route and its applicable timescale; do not state a route or deadline that has not been approved and implemented.
- Consider public-facing information through a Council AI Register or an ATRS record only where an approved Council policy/process calls for it and publication is authorised. GOV.UK ATRS guidance sets scope and exemptions; verify the current guidance for the specific body and use. ATRS or public-register publication is not asserted here as a blanket mandatory duty for a local authority.

5. The resident-facing route

The route is written for the person, not the process:

- Proposed design: a plainly worded way to ask for review through an applicable, confirmed Council complaint or contact channel, with an AI-decision review identified where the service has approved and implemented it.
- Where a route is provided, it should not require the person to cite a statute or use legal language.
- Consider reasonable adjustments and assisted routes in line with applicable duties and approved service arrangements.

6. How the Council handles a challenge

Step 1 Log the challenge against the system AIR-ID and exact affected UC-ID; if the use is not yet known, mark it unknown and open a review record. Verify the decision context and conditions at source.

Step 2 Fresh human review: a suitably competent person who was not involved in the original decision reviews it, with authority to change it. The review is meaningful, not a rubber-stamp of the AI output.

Step 3 Check: was the person given information and reasons required by the applicable framework; did the AI operate within documented scope; and was any required assessment (DPIA AIG-ASS-05, EIA AIG-ASS-06, HRA AIG-ASS-07) in place and followed.

Fundamental-rights coverage: for how this control contributes to EU AI Act Article 27 fundamental-rights impact assessment coverage, see the Fundamental Rights Coverage Crosswalk (AIG-ASS-12). The crosswalk is a design mapping, not case evidence.

Step 4 Decide — uphold, correct, or re-take the decision — and record the outcome and reasons in the native case record. Use the Governance Decision Record (AIG-DEC-03) only where the outcome is a governance decision (for example suspension or a scope change); residents' case details stay out of governance records.

Step 5 Provide redress where warranted (section 7).

Step 6 Where a systemic fault or governance event arises, record a dated Gate Event on the Gate Log (AIG-DEC-04), without case details; where a fault is found, raise an Incident Report (AIG-OPS-03) and a Nonconformity / Corrective Action entry (AIG-AIMS-08).

Step 7 Where the challenge is, or includes, a data-protection complaint, handle it under the Council's DPA 2018 section 164A complaints procedure: acknowledge it within 30 days, respond without undue delay and tell the person the outcome, before signposting to the ICO. Legal Services and the DPO to confirm.

Step 8 Where relevant, signpost onward routes (including the LGSCO or ICO) only where the matter falls within that body's remit and applicable eligibility requirements.

Timescales remain for Council confirmation against applicable complaint procedures. Where there is a real risk of ongoing harm, the responsible owner should consider whether reliance on the contested output should be paused pending review, under the applicable authority and process.

7. Redress — what can result

- Correcting or re-taking the decision.
- An apology and a clear explanation.
- Putting the person in the position they should have been in (e.g. backdating a service or benefit).
- A financial remedy where the Council's remedies guidance applies, consistent with LGSCO remedies guidance.
- Suspension or change of the system where a systemic fault is found (links to the escalation triggers at Playbook §4.4.6, suspension and withdrawal at §4.7.17, and the agentic suspension capability at §4.7.7).

8. Recording, monitoring and learning

- Record challenges and outcomes in the authorised native case channel; link governance-level events to the Register ID and, where appropriate, the Gate Log (AIG-DEC-04) without putting case details in an unsuitable record.
- If adopted, aggregate challenge measures may be reported under the Monitoring & Measurement Plan (AIG-AIMS-10) and Playbook §3.11, with suitable privacy controls, defined denominators and context. A change in rates may warrant review but does not by itself establish a system problem.
- Faults feed the Incident (AIG-OPS-03) and Corrective Action (AIG-AIMS-08) processes; patterns are reported to the AI Assurance Board and into the Management Review (AIG-AIMS-09).

9. Roles

Role	Responsibility
Service Owner	Accountable for the decision; ensures reasons or explanations are provided where required and delivers any authorised redress within the applicable process.
Reviewer (independent of the original decision)	Conducts the fresh, meaningful human review and has authority to change the decision.
AI Governance Lead	Owns this control, the recording and the reporting; advises on complex cases.
AI Assurance Board	May oversee patterns and systemic faults and recommend suspension; any decision is made by the person or forum with confirmed delegated authority.

Role	Responsibility
Data Protection Officer	Advice on data-protection aspects, the section 164A complaints procedure and ICO liaison.
Legal Services	To confirm the legal anchors and advise on judicial-review or Ombudsman questions as appropriate; this draft is not legal advice.

Document control

Administrative control record. This artefact remains a working draft until formally approved.

Field	Controlled value
Document ID	AIG-OPS-04
Version	1.7 draft
Status	Draft for Council review
Document owner	AI Governance Lead
Approving body	Proposed approving authority: competent Council authority under confirmed Constitution / Scheme of Delegation (to be identified); AI Assurance Board provides assurance and is not presumed to approve this control.
Approval date	Not yet approved
Effective date	Not yet effective
Next review date	To be set on approval: 12 months after the effective date, or sooner following material change
Classification	OFFICIAL

Change history

Version	Date	Change summary	Owner
1.0 draft	12 September 2026	New artefact: contestability and redress control added to the controlled suite (AIG-OPS-04), giving effect to White Paper Principle 5 and the statutory contest/redress safeguards.	AI Governance Lead
1.1 draft	14 September 2026	DUAA legal-currency update: aligned the Articles 22A to 22D trigger to decisions taken solely by automated processing with no meaningful human involvement, and referred to meaningful information about the decision. Contest routes unchanged.	AI Governance Lead
1.2 draft	29 September 2026	QA remediation — applied findings QA-063, QA-073, QA-079, QA-091, QA-096, QA-168, QA-179, QA-185, QA-200 (see QA change log). Meaningful-human-involvement test added to Tier B; DPA 2018 s.164A complaints duty added as an anchor and Step 7; case outcomes kept in the native case record; §4.7.17 cited for suspension. Final tidy-up: self-referencing cross-reference removed from the standards row(s) REQ-034.	AI Governance Lead
1.3 draft	30 September 2026	v3.9.1: standards cross-reference note updated to the 54-entry requirement inventory (AIG-AIMS-05 REQ-054, Civil Contingencies Act 2004, added).	AI Governance Lead

Version	Date	Change summary	Owner
1.4 draft	1 October 2026	v3.9.3: standards cross-reference note cites the 55-entry requirement inventory (AIG-AIMS-05 REQ-055, NIST AI 600-1 Generative AI Profile, added).	AI Governance Lead
1.5 draft	2 October 2026	v3.9.5: standards cross-reference note cites the 56-entry requirement inventory (AIG-AIMS-05 REQ-056, SI 2026/425 ICO statutory code of practice on AI and automated decision-making, added). Proposed — for Council confirmation.	AI Governance Lead
1.6 draft	12 October 2026	v3.9.10: standards cross-reference note cites the 58-entry requirement inventory (AIG-AIMS-05 REQ-057 DAMA-DMBOK and REQ-058 ISO/IEC 5259, added as voluntary data governance references). Proposed — for Council confirmation.	AI Governance Lead
1.7 draft	14 October 2026	v3.9.11: currency. The purpose statement no longer cites the UK AI Regulation White Paper (March 2023), which is no longer current; the control now gives effect to the contestability and redress expectations in the AI Playbook for the UK Government and the accountability principle of the Data and AI Ethics Framework. Contest routes and legal anchors unchanged.	AI Governance Lead

NOT APPROVED — PROPOSED INTEGRATION ANNEX

Integration annex — Contestability, evidence and event references

DRAFT FOR COUNCIL REVIEW • 25 September 2026 • Not approved for operational use

Native control and legal validation

This remains the native Council control for contestability and redress. Its legal anchors, scope criteria, timescales and resident-facing commitments remain subject to the Legal Services, complaints-service and other owner validation already identified in the source; this annex does not determine legal applicability or amend an individual's rights. Do not interpret draft future-tense commitments as evidence that an operational route or published information exists.

Case evidence and governance record

Use the post-registration AIR-ID in AIG-INV-04 as the system join, and keep each challenge/case record in its authorised native case channel. Index relevant evidence in AIG-INV-04 with Evidence ID, source/version, date and location. An AIG-DEC-04 citation is restricted to the ID/date of an actual dated Gate Event or Condition; do not use a planned gate, state label or this crosswalk as proof of an event. The substantive authorised review/redress decision is recorded in its native case record and, where it is a governance decision, AIG-DEC-03 or authoritative minutes. AIG-DEC-04 is only a dated link.

Monitoring and reassessment

Challenge scope — link the case to AIR-ID and the exact UC-ID, decision context, affected person/group and applicable conditions. Do not infer that the system's registration or another use's review covers this case. Where the use/decision is unknown or conflicts with the source record, mark unverified and escalate.

Link challenge trends and systemic review to AIG-OPS-02 and its defined measures, thresholds, cadence and denominator; do not infer a trend or outcome from blank fields. Material state, supplier/model, scope or rights-related changes trigger owner review in AIG-INV-04/AIG-OPS-02 and reconsideration of applicable assessments. Any changed gate status must have a dated actual AIG-DEC-04 record and the appropriate decision source.

Agentic decisions and publication boundary

Where an agent influenced the decision, link exact AIG-AGT-04 ASBOM/AG-ID authority version, AIG-AGT-05 only as derived graph, and AIG-AGT-06 action decision record. This does not establish that authority was valid or the challenge resolved. Any public disclosure or publication requires separate review and authority; none is asserted here. Public disclosure and any ATRS publication are separate decisions: verify current GOV.UK scope/exemptions and Council policy, obtain authorised approval, and do not assume a blanket local-authority publication duty.

Source check for Council review: Equality Act 2010, section 149; Human Rights Act 1998, section 6; and GOV.UK Algorithmic Transparency Recording Standard guidance for public sector bodies (including scope and exemptions). Check the current official text and guidance before adopting or applying this control.

Standards and legal applicability — proposed QA cross-reference

Proposed map use in contestability and redress

If AIG-INV-05 is adopted, it may help locate the system, use case and capability context for a challenge or redress case. Cite its version, AIR-ID, Edge ID and source/as-at details, and validate the relationship against current evidence; it does not prove that a person was affected, a right engaged, a safeguard operated or redress was completed. Record the case through the authorised channel, link the actual AIG-DEC-04 Event/Condition where relevant, and preserve the formal decision and evidence in their authoritative records.

PROPOSED QA INDEX — NOT APPROVED LEGAL ADVICE OR EVIDENCE OF COMPLIANCE. The listed instruments may be relevant to this artefact, but applicability depends on the case, service and Council delegation. Legislation, official guidance, Council policy and voluntary standards are different authority classes. The full 58-entry requirement inventory, authoritative URLs, validation owners and current versions are in AIG-AIMS-05; source checks are in AIG-AIMS-13. Do not treat a template, plan or cross-reference as completed assessment, adopted policy, ISO conformity or legal sign-off.

Requirement / instrument	Why check it here	Source
REQ-005 — Equality Act 2010, including Public Sector Equality Duty section 149	Public authority due regard under s.149; case-level equality screening is not risk-tier gated.	https://www.legislation.gov.uk/ukpga/2010/15/section/149
REQ-006 — Human Rights Act 1998	Public-authority compatibility under s.6; assess Convention rights engaged by the case.	https://www.legislation.gov.uk/ukpga/1998/42/contents

REQ-007 — Administrative law, statutory powers, procedural fairness and reasoned decision-making	Screen the public-law requirement against this artefact's actual use and record evidence/version.	Common law and statute — Legal Services to confirm (see e.g. Government Legal Department, 'The Judge Over Your Shoulder')
REQ-034 — ICO Explaining Decisions Made with AI guidance	Screen the regulatory guidance requirement against this artefact's actual use and record evidence/version.	https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/artificial-intelligence/explaining-decisions-made-with-artificial-intelligence/
REQ-036 — Algorithmic Transparency Recording Standard (ATRS)	Central-government mandatory scope is distinct from proposed local-authority adoption.	https://www.gov.uk/government/publications/guidance-for-organisations-using-the-algorithmic-transparency-recording-standard/algorithmic-transparency-recording-standard-guidance-for-public-sector-bodies